

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

Court of Appeal Revision
Application No. CPA/0060/2023
High Court of Colombo
case No. HCB/1981/2013

**In the matter of an Application for Revision in
terms of Article 138 of the Constitution of the
Democratic Socialist Republic of Sri Lanka, read
with Section 364 and 365 of the Criminal
Procedure Act No. 15 of 1979.**

The Director General,
Commission to Investigate Allegations of Bribery
or Corruption,
No. 36,
Malalasekara Mawatha,
Colombo 07.

Complainant

Vs.

Weerawansha Mudhiyanselage Wijekoon,
No. 1277,
Haddaththawa,
Sorabora Janapadaya,
Mahiyanganaya.

Accused

AND NOW BETWEEN

The Director General,
Commission to Investigate Allegations of Bribery
or Corruption,
No. 36,
Malalasekara Mawatha,
Colombo 07.

Complainant- Petitioner

Vs.

Weerawansa Mudhiyanselage Wijekoon,
No. 1277,
Haddaththawa,
Sorabora Janapadaya, Mahiyanganaya.

Accused-Respondent

Before: **Sampath B. Abeykoon, J.**
 Amal Ranaraja, J.

Counsel: Anusha Sammandapperuma, Assistant Director Legal with S. Jayaraja, ALA
 for the Complainant – Petitioner.

Senarath Jayasundara with Chatharaji Welala for the Accused-Respondent.

Supported on: 30.09.2024

Decided on : 18.11.2024

ORDER

AMAL RANARAJA, J.

1. This is an application by the Complainant-Petitioner (hereinafter referred to as the '*petitioner*') namely, the Director General of the Commission to Investigate Allegation of Bribery and Corruption invoking revisionary jurisdiction granted to this Court in terms of Article 138 of the Constitution.
2. The petitioner has instituted action against the Accused-Respondent (hereinafter referred to as the '*respondent*') in the **High Court of Colombo** in **Case No. HCB/1981/2013** for soliciting a sum of Rs. 50,000/- and for accepting a sum of Rs. 10,000/- as a gratification from the Virtual-

Complainant, *R.D. Upali Rajapaksa* to expedite the issuing of a land permit to him; offences punishable in terms of Sections 19 (b) and 19 (c) of the Bribery Act.

3. Upon receipt of the indictment, the respondent has been summoned to appear in Court and the indictment has been served on the respondent. The respondent having pleaded not guilty to the counts in the indictment, the case proceeded to trial. At the conclusion of the petitioner's case, the respondent called his witnesses to give evidence on his behalf.
4. When the last of the respondent's was giving evidence, the respondent raised an objection, supposedly as one of a preliminary nature, citing Section 3 of the **Commission to Investigate Allegations of Bribery or Corruption Act No. 19 of 1994** (hereinafter referred to as the "Act"). The respondent has submitted that all three members of the Commission together have not (i) directed the investigation of the relevant communication received by the Commission, (ii) given the direction to institute action against the respondent in the High Court therefore the institution was not according to law.
5. The Learned High Court Judge by his order dated **22.11.2022** has held with the respondent and discharged him from the proceedings. It is against that order; the petitioner has filed this revision application.
6. The Learned Counsel for the petitioner contended that the Commission to Investigate Allegations of Bribery or Corruption, has the power to investigate any matter disclosed to it by a communication, for the purpose of deciding whether proceedings could be instituted against any person for an offence committed in an appropriate Court. It was submitted that the Commission may exercise the powers conferred on it by sitting together or separately. Where a single member of the Commission exercises the power vested in it by sitting separately, his act shall be deemed to be that of the Commission. It was further submitted that the Commission may delegate to any officer appointed to assist the Commission any of the powers vested in it other than those referred to in Section 16 (3) of the 'Act'. The Counsel for the petitioner has drawn the attention of Court to Sections 2 (8), 4 (3), 11 and 16 (3) of the 'Act' in support of her contention.

7. Further, the attention of the Court was also drawn to Sections 11, 12 and 24 of the 'Act' which provide that when the indictment has been signed by the Director General, the High Court shall receive such indictment and shall have jurisdiction to try the offence described in the indictment. The Learned Counsel for the petitioner has also contended that the Learned High Court Judge had erred in law by failing to consider that the case, *Anoma Polwatte vs. Jayawickrama and Others, SC (Writ) 01/2011*, was a judgment of the Supreme Court pursuant to a writ application challenging the institution of an action under Section 78 (1) of the 'Act' and that the respondent was not entitled to challenge the decision of the Commission without resorting to the proper remedy granted in terms of Section 24 (1) of the 'Act'.
8. The Sections in the 'Act' referred to are as follows;

Section 2 (8)

"The members of the Commission may exercise the powers conferred on the Commission either sitting together or separately and where a member of the Commission exercises any such power sitting separately, his acts shall be deemed to be the act of the Commission".

Section 4 (3)

"The Commission shall have the power to investigate any matters disclosed by a communication received by it under subsection (1) whether or not such matters relate to a period prior to the appointed date and notwithstanding anything to the contrary in any other law".

Section 11

"Where the material received by the Commission in the course of an investigation conducted by it under this Act, discloses the commission of an offence by any person under the Bribery Act or the Declaration of Assets and Liabilities Law, No. 1 of 1975, the Commission shall direct the Director-General to institute criminal proceedings against such person in the appropriate court and the Director-General shall institute proceedings accordingly : ...".

Section 16 (3)

"The Commission may delegate to the Director-General or any other officer appointed to assist the Commission any of its powers (other than the powers, referred to in paragraphs (i), (j), (k) and (l) of subsection (1) of section 5, section 11 and this section) and the person to whom such powers are delegated may exercise those powers subject to the direction of the Commission".

9. Since the Learned Counsel for the petitioner has drawn my attention to those sections in the 'Act' to support her contention, I turn my attention as to how a section in an 'Act' should be construed. In that regard my attention is drawn to the following;

"Statutes should be construed, as far as possible, to avoid absurdity or futility. A statute should be construed in a manner to give it validity rather than invalidity- ut res magis valeat cuam pereat. As Lord Dunedin stated in Whitney vs. Inland Revenue Commissioner (1925) AC 27, 52, "A statute is designed to be workable, and the interpretation thereof should be to secure that object, unless crucial omission or clear direction makes that end unattainable." A similar view was expressed by Lord Simon L.C. in Noles Vs. Don Caster Amalgamated Collieries Ltd (1940) AC 1014, 1023 in the words: "If the choice is between two interpretations, the narrower of which would fail to achieve the manifest purpose of the legislation, we should avoid a construction which would reduce the legislature to futility and should rather accept the bolder construction based on the view that Page 14 of 17 parliament would legislate only for the purpose of bringing about an effective result." Lord Reid enunciated the same view in Luke Vs. Inland Revenue Commissioner (1963) 1 ALL ER 655, 664 "How then are we to resolve this difficulty? To apply the word literally is to defeat the obvious intention of the legislature and to produce a wholly unreasonable result. To achieve the obvious intention and produce a reasonable result, we should do some violence to the words. This is not a new problem ... The general principle is well settled. It is only where the words are absolutely incapable of construction which will accord with the apparent intention of the provision and avoid a wholly unreasonable result that the words of the enactment must prevail." It is thus legitimate and proper to read and rely upon such a principle as this: "Where the language of a statute in its ordinary meaning and grammatical construction leads to manifest contradiction of the apparent purpose of the enactment, or to cause inconvenience or absurdity, hardship or injustice, presumably not intended, a

construction may be put upon it which modifies the meaning of the words and even the structure of the sentence.” (Maxwell ‘Interpretation of Statutes, 10th Ed. at p. 229) A purposive approach to the construction of relevant sections of the law avoids the futility apprehended by Counsel and enables the statutory objective to be achieved.”

[Vide Nandasena vs. Senanayake and Another (1981) 1 SLR 238 at page 245]

10. I construe the sections of the ‘Act’ referred to by the Counsel for the petitioner keeping in mind those principles adverted to.
11. Section 2 (8) of the ‘Act’ enables the Commission to exercise its’ powers by the commissioners’ sitting together or separately. Such acts shall be deemed to be the acts of the Commission. Section 4 (3) bestows in the Commission the power to investigate matters disclosed in a communication. Section 11 enables the Commission to direct the Director General to institute criminal proceedings against a person of whom relevant material has been gathered in an appropriate court. Section 16 (3) enables the Commission to delegate its power to an officer appointed to assist it subject to certain restrictions.
12. Further, the application of Sections 11 and 12 of the ‘Act’ has been discussed by the Supreme Court of Sri Lanka as follows;

“When considering the submission referred to above, it is clear that the said grounds of appeal raised on behalf of the 2nd accused-appellant were based on a misrepresentation given to the decision of this Court in the case of Anoma S. Polwatte Vs. The Director General of the Commission to Investigate Allegations of Bribery or Corruption and Others (supra). As already observed by us, when deciding the above case, this Court had never intended to impose an additional requirement of submitting a written directive given by the commission when forwarding an indictment by the Director General CIABOC to High Court other than following the provision already identified under section 12 (1) and (2) of the CIABOC Act. If the Director General is

directed under section 11 of the CIABOAC Act by the CIABOC to forward an indictment, he is only bound to follow the provisions of section 12 (1) and (2) of the CIABOC Act. In the absence of any complaint that the Director General CIABOC had failed to comply with sections 12 (1) and (2) of the CIABOC Act when forwarding the indictment before the High Court at Bar, it is correct in refusing the jurisdictional objection raised on behalf of the 2nd accused before the High Court at Bar. The trial Judge before whom the indictment is filed is therefore bound to accept the indictment and take up the trial unless there is material to establish that Director General CIABOC had failed to comply with the provisions of section 12 (1) and (2) of the CIABOC Act. Any party who intends to challenge an indictment forwarded by the Director General CIABOC on the basis that the CIABOC had failed to comply with section 11 of the CIABOC Act, the said challenge would only be raised in an appropriate action filed before an appropriate forum."

[Vide Indikatiya Hewage Kusumadasa Mahanama and Another vs. The Commission to Investigate Allegations of Bribery or Corruption and Another SC TAB 1A and 1B/2020 decided on 11.01.2023]

13. The Court of Appeal has also held as follows;

"Thus, in the instant application the petitioners cannot raise the objection of the indictment being defective under Section 11 of CIABOC Act and thereby impugn the acts of the Commission before the Court of Appeal or before the High Court. It ought to be canvassed under the writ jurisdiction before the Supreme Court under section 24 (1) of the Act. The Court of Appeal or the High Court is not the proper forum and has no jurisdiction to entertain such objections."

[Vide Maldeniyage Don Upali Gunaratne Perera and Another vs. Commission to Investigate Allegations Bribery or Corruption CPA 85/2022 decided on 04.04.2023]

14. The reasons enumerated above clearly indicate that the powers of the Commission are not limited to those referred to in Section 05 of the 'Act',

powers of the Commission are set out in other sections of the 'Act' too. When exercising the powers of the Commission it can be done by a single member of the Commission separately. However, those acts of a single member of the Commission will be deemed to be those of the Commission. Commencing an investigation based on a communication received by it, is a power of the Commission. A direction to the Director General by the Commission to do so, does not have to be forwarded with the plaint/indictment when the Director General institute proceedings in an appropriate Court. Further, the party who intends to canvas an indictment forwarded by the Director General on the basis that the Commission has failed to comply with the provisions of Section 11 of the 'Act', ought to be canvassed under the writ jurisdiction before the Supreme Court as per Section 24 (1) of the 'Act'.

15. In terms of Section 13 (2) of the 'Act', the Director General has similar rights as those of the Attorney-General regarding appeals. In keeping in mind that provision, I draw my attention now to **Section 15** of the **Judicature Act No. 2 of 1978**.

Section 15 of the **Judicature Act** in as follows;

"The Attorney-General may appeal to the Court of Appeal in the following cases:

- (a) from an order of acquittal by a High Court of the Republic of Sri Lanka or a High Court for the Province established by Article 154P of the Constitution-*
 - (i) on a question of law alone in a trial with or without a jury;*
 - (ii) on a question of fact alone or on a question of mixed law and fact with leave of the Court of Appeal first had and obtained in a trial without a jury;*
- (b) in all cases on the ground of inadequacy or illegality of the sentence imposed or illegality of any other order of the High Court of the Republic of Sri Lanka or a High Court for the Province established by Article 154P of the Constitution".*

16. Accordingly, Section 15 confers on the Attorney-General the right of appeal/the right to file a leave to appeal application from an order of an acquittal by the High Court and a petition of appeal on the grounds of inadequacy or illegality of a sentence imposed or the illegality of any other order of the High Court. Therefore, in terms of Section 13(2) of the 'Act', the Director-General has the right to appeal, etc., as conferred on the Attorney General.

17. In *Rustom vs. Hapangama and Co.* (1978-79) 2 SLR 225 at page 231, his Lordship Vythialingam J has stated,

"So that where an order is palpably wrong and it affects the rights of a party also, this Court would exercise its powers of revision to set right the wrong irrespective of whether an appeal was taken or was available".

18. Correspondingly, this Court can exercise its' revisionary powers whether the petitioner has taken an appeal or not.

19. In those circumstances, the submission made on behalf of the respondent that the petitioner cannot sustain the instant Application for revision must fail.

20. In *Attorney General vs. Podisingho* 51 NLR 388, Dias J has stated,

"that this power [(revision) (which is a discretion)] is exercised; "where there is a positive miscarriage of justice in regard either to law or to the judge's application of the facts."

21. In *Sunil Chandra Kumara vs. Veloo* (2000) 3 SLR 91 at page 102 Jayasinghe J has stated,

"Revision is a discretionary remedy; it is not available as of right. This power that flows from Article 138 of the Constitution is exercised by this Court on application made by a party aggrieved or ex mero motu; this power is available even where there is no right of appeal as for instance Section 74 (2) of the

Primary Courts Procedure Act. The Petitioner in a Revision application only seeks the indulgence of Court to remedy a miscarriage of justice. He does not assert it as a right. Revision is available unless it is restricted by the constitution or any other law. I am unable to see any such impediment"

22. In **Gnanapandithan vs. Balanayagam (1998) 1 SLR 286** G.P.S. De Silva CJ has stated,

"The question whether delay is fatal to an application in revision depends on the particular facts and circumstances of the case. Having regard to the very special and exceptional circumstances of the case the appellants were entitled to the exercise of the revisionary powers of the Court of Appeal."

23. The impugned order is per se illegal. If permitted to stand, would most certainly impact the criminal justice system negatively. Such an impact in my view would disclose a very special and exceptional circumstance. Hence, the petitioner is entitled to the exercise of the revisionary powers of this Court.

24. I also set aside the order dated **22.11.2022** delivered in **Colombo High Court Case No. HCB/1981/2013**. The learned High Court Judge is directed to hear further evidence in the respondent's case, if necessary, and conclude the matter.

The Registrar of this Court is directed to communicate this Order to the High Court of Colombo.

Judge of the Court of Appeal

SAMPATH B. ABEYKOON, J.

I agree,

Judge of the Court of Appeal